



**OFFICE OF THE COMMISSIONER OF CUSTOMS (NS-III),
TURANT SUVIDHA KENDRA, FIRST FLOOR,
JAWAHARLAL NEHRU CUSTOM HOUSE,
POST: SHEVA, TALUKA: URAN, DIST: RAIGAD,
MAHARASHTRA – 400707**

DIN:20240378NV0000000C54

DATE:20.03.2024

PUBLIC NOTICE NO. 33/2024

**Subject: Certain FTA certificate verification in TSK
under CAROTAR Rules-2020-reg.**

Attention is drawn towards Rule 4, 5 and 6 of Customs (Administration of Rules of Origin under Trade Agreements) Rules, 2020 (Notification No. 81/2020 - Customs (N.T.) dated, 21st August, 2020) also known as CAROTAR Rules-2020, which mandates requisition of certain information from exporter of originating country. In cases where there is reason to believe that origin criteria prescribed in the respective Rules of Origin have not been met, Customs official may seek information and supporting documents, as may be deemed necessary. This requirement is further cemented by section 28DA(3) of the Customs Act, 1962 mandating importer to furnish further information to the proper officer in case of reasonable doubt regarding country of origin criteria.

2. The Turant Suvidha Kendra (TSK) official is responsible for verification of certain documents uploaded in e-sanchit module of ICES and defacing of original documents including FTA prescribed Country of Origin (COO) certificate (FTA certificate). In recent past, the following difficulties are being faced by the TSK official during verification and defacing of FTA certificate in case of 3rd Party invoicing:

- (i) The presented FTA certificate does not provide FOB value in the requisite column.
- (ii) The 3rd Party invoice does not indicate FOB value as mentioned in the FTA certificate along with other cost and services,
- (iii) The 3rd Party invoice contains a greater number of items than mentioned in FTA certificate,
- (iv) The CTH in the Bill of Entry filed on the basis of 3rd Party invoice does not match with the CTH indicated in the FTA Certificate.

3. As an alternative to rigorous process of verification of FTA certificate from the exporting country as laid down in CAROTAR Rules-2020 in each case, and as a measure to ease the verification and defacing procedure of such FTA certificate by TSK official, following procedures are being prescribed:

- (i) The 3rd Party invoice which does not indicate FOB value as mentioned in FTA certificate along with other cost and services:

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I/1842795/2024

The importer will submit invoice of exporter of originating country on the basis of which FTA certificate was issued.

(ii) The 3rd Party invoice contains a greater number of items than mentioned in FTA certificate
The importer will submit invoice of exporter of originating country on the basis of which FTA certificate was issued and amend the Bill of Entry accordingly.

(iii) The CTH in the Bill of Entry filed on the basis of 3rd Party invoice does not match with the CTH indicated in the FTA Certificate:

The importer will submit invoice of exporter of originating country on the basis of which FTA certificate was issued and amend Bill of Entry accordingly.

4. In case, the presented FTA certificate does not provide even FOB value in the requisite column, except the FTA certificate which do not have FOB value column (e.g, CEPA), the FTA certificate may be referred to Group for necessary verification from exporting country in terms of CAROTAR Rules- 2020.

5. It may be emphasized that section 28DA(4) of the Customs Act, 1962 provides that if importer fails to provide requisite information proper officer may cause verification of FTA certificate in terms of CAROTAR Rules, 2020.

6. All the previous Public Notices and Standing Orders on this issue stand modified to the above extent.

7. This Public Notice should be considered as a Standing Order for the concerned Officers and Staff of this Custom House.

8. Any difficulty faced in implementation of this public notice may be brought to the notice of AC/DC incharge of TSK.

(Ashwini Kumar)

Commissioner Of Customs (NS-III)

Copy to:

1. The Chief Commissioner of Customs, Mumbai Zone-II, Nhava Sheva.
2. The Commissioner of Customs, NS-I, NS-II, NS-III, NS-IV, NS-V, NS-GJNCH, Nhava Sheva.
3. Additional/ Joint/ Dy./ Asstt. Commissioners of Customs, JNCH, Nhava Sheva.
4. AC/DC, EDI for uploading on JNCH website.
5. Office Copy